

The Defendant made payments of \$200.20.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,915.61.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: L25-12176
CASE NAME: VELOCITY INVESTMENTS, LLC VS. BWERANI BROWN
SET ASIDE DEFAULT AND DEFAULT JUDGMENT, IF ENTERED
FILED BY: BROWN, BWERANI
***TENTATIVE RULING**

Defendant filed a Motion to Set Aside a Default Judgment, on 4/3/26.

There is no evidence that Defendant served notice of the Motion or of the hearing.

Disposition

Motion will be continued to 9/6/26, 9am.

Defendant to provide proper notice of the Motion and of the date of hearing to Plaintiff.

Court to file Order.

12. 9:00 AM CASE NUMBER: L25-12428
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
MTN FOR ORDER AUTH ALT SERV OF SUMMONS ON DEF. ANIL YADAV FILED BY PLTF. ON
03/27/2026
FILED BY: VAN DE POEL & LEVY LLP
TENTATIVE RULING:

Plaintiff to submit this request in the efile queue. This will be dropped.

13. 9:00 AM CASE NUMBER: L25-12481
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
MOTION FOR ORDER AUTH ALT SERV OF SUMMONS ON DEF. ANIL YADAV PURSUANT TO CCP
413.30 FILED BY PLTF. ON 03/24/2026
FILED BY: VAN DE POEL & LEVY LLP
TENTATIVE RULING:

Plaintiff to submit this request in the efile queue. This will be dropped.

14. 9:00 AM CASE NUMBER: L25-14301

CASE NAME: WELLS FARGO BANK, N.A. VS. MARK GONZALES

MOTION TO DEEM REQ FOR ADMISSIONS ADMITTED FILED BY PLN ON 3/30/26

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with an accompanying Declaration.

Plaintiff attached the particular facts at issue, numbered One through Eleven and entitled, "Set One," in Exhibit A of their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

15. 9:00 AM CASE NUMBER: L26-00601
CASE NAME: CAPITAL ONE, N.A. VS. WILLIAM L SABA

FILED BY:

TENTATIVE RULING:

Counsel filed a Motion to be Relieved.

There is no evidence of service on the Defendant.

No declaration was provided.

Disposition

Counsel for Defendant to appear on 7/7/26, 9am (zoom is permitted), to provide proof of service, as well as to provide reasons for withdrawal in camera.

16. 9:00 AM CASE NUMBER: L26-04380
CASE NAME: PETITION OF: JACK WAKILEH
PET. FOR RELASE OF PROPERTY. MECHANIC'S LIEN

FILED BY:

TENTATIVE RULING:

Petitioner filed a Petition for the Release of a Mechanic's Lien, along with a Declaration, on 5/7/26. Both documents were personally served on the Respondent.

The Petition is unopposed.

Petitioner seeks the release of the Mechanic's Lien on the property at 3784 Mosswood Dr., in Lafayette, as well as attorneys' fees in the amount of \$5,812.

Background

The Petition alleges that Respondent filed a Mechanic's Lien on the property for construction work, and that the Lien was recorded on 12/18/25. Petitioner further alleges that Respondent never filed an action on the lien after the recording. The deadline for filing an action was 3/18/26.

Petitioner sent several letters to Respondent in an attempt to resolve the matter, but also to notify Respondent of Petitioner's intent to file the Petition if Respondent failed to remove the lien. The latter notification occurred on 3/20/26.

There was no resolution, and the lien remained.